

	(2) After a litigation has been finally determined against the person, repeatedly relitigates or attempts to relitigate, in propria persona, either (i) the validity of the determination against the same defendant or defendants as to whom the litigation was finally determined or (ii) the cause of action, claim, controversy, or any of the issues of fact or law, determined or concluded by the final determination against the same defendant or defendants as to whom the litigation was finally determined. (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay. Cases interpreting the vexatious litigant statute explain that its provisions “are designed to curb misuse of the court system by those persistent and obsessive litigants who, repeatedly, waste the time and resources of the court system and other litigants.” <i>Shalant v. Girard</i> (2011) 51 Cal. 4th 1164, 1169 (citation omitted); <u>see also</u> <i>In re Marriage of Deal</i> (2020) 45 Cal. App. 5th 613, 618 (same). The in propria persona litigant can be declared vexatious by “relitigate[ing] or attempt[ing] to relitigate matters previously determined against him or her, [or] repeatedly pursu[ing] unmeritorious or frivolous tactics in litigation. . . .” <i>Shalant</i>, at 1169-1170. <u>Analysis.</u> This is not the first litigation commenced by plaintiff related to his February 2020 termination. Previously, plaintiff filed litigation involving that termination in 2020, initially commenced in Los Angeles County and transferred to Orange County in case 2022-01239814. (RJN A). That case was dismissed with prejudice following a demurrer (RJN C), and a judgment entered June 13, 2022. (RJN F). A review of the docket from the prior case reveals that no appeal was taken from the judgment. The evidence submitted in support of this motion establishes that plaintiff filed seven separate actions in 2024 related to the same February 2020 termination, all of which raise virtually the same allegations. (<u>See</u> Decl. of Maya; Exh. A). Each of these actions named
--	--

	as defendants both the City of Anaheim and Jared Moye. The court finds that seven separate actions pursued by the same plaintiff naming the same defendants and the same operative facts that have previously been judged against plaintiff satisfies the requirements of C.C.P. 391(b)(2). <u>See</u> <i>Goodrich v. Sierra Vista Regional Medical Center</i> (2016) 246 Cal. App. 4th 1260. The is so even though plaintiff has dismissed several of the seven actions. <i>Tokerud v. Capitolbank Sacramento</i> (1995) 38 Cal. App. 4th 775, 779 (“A party who repeatedly files baseless actions only to dismiss them is no less vexatious than the party who follows the actions through to completion. The difference is one of degree, not kind.”) The consequences of this finding are addressed below. While defendants argue that Section 391(b)(3) also applies to plaintiff, the court is not persuaded. The court reads this section as applying to conduct in a single pending civil action—and not a compilation of activities that can be observed from various separately-pending actions. It is true, as defendants have established, that plaintiff has filed motions that are unmeritorious or potentially frivolous. For example, in one of the other cases filed by plaintiff, 2024-01395650, plaintiff filed a motion to continue a trial date when no trial date has been set. (<u>See</u> Item 61 on the court’s current calendar.) Further, plaintiff has named the current opposition as “Notice of Opposition and Notice of Motion and Motion to Set-A-Side the Antichrist City of Anaheim and Defendant Jared Moye Seek Motion to Consolidate and Demur Complaint, the Antichrist Fail to Provide the Burden of Proof as Per Statutory Law, Which Automatic Grants Plaintiff, Motion to Set Aside the Antichrist also Requesting a Motion for Vexatious Litigant, There is Three Current Cases on File and one Past Case, Total of Four Cases, However Seven Cases Is Required to Be a Vexatious Litigant The Antichrist Again Fails to Provide the Requirements Needed to be a Vexatious Litigant, Which Automatic Grants Plaintiff Approval to Set-A-Side Motion.” (ROA 74). Also in this case, plaintiff has filed something that appears to request the revocation of a driver’s license. (ROA 37). But a meritless or frivolous motion in a different matter does not seem to fall within the framework of
--	---